

RE: Our Client: City of Richmond
GHC Claim #: GHC0088399
Master Claim #: 2025-0205
Claimant: Rakeisha Hill
Date of Loss: October 7, 2024

DENIAL OF APPLICATION FOR LEAVE TO PRESENT A LATE CLAIM

As the claims administrator for the City of Richmond, George Hills provides the following notice:

Consistent with Government Code section 911.8, notice is hereby given that the Application for Leave to Present Late Claim, which you presented to the City of Richmond, on September 16, 2025, was denied on October 31, 2025.

WARNING

If you wish to file a court action on this matter, you must first petition the appropriate court for an order relieving you from the provisions of Government Code Section 945.4 (claims presentation requirement). See Government Code Section 946.6. Such petition must be filed with the court within six (6) months from the date your application for leave to present a late claim was denied.

That six-month deadline expired on April 30, 2026. (Motion at p. 18: 2-3.) Plaintiff did not allege or provide evidence of her filing of a Government Code section 946.6 petition by that deadline.

This failure is fatal to the Labor Code section 1102.5 claim. The defect is procedural, jurisdictional in effect, and incurable by another amendment.

Plaintiff argues that she substantially complied with Government Code section 911.2's notice requirements. Plaintiff reasons that they provided notice to the Richmond City Attorney and that she had a year to bring her claim. Both reasons are wrong. Under California Government Code Section 915, a city attorney is not the statutorily designated recipient for government claims. To be legally valid, the claim must be presented to the city clerk, secretary, auditor, or the governing body. (Gov. Code § 915.) A violation of Labor Code section 1102.5 mandates that government tort claim be presented within six months of the acts as required by the Government Claims Act. (*Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1110.)

The Demurrer is sustained without leave to amend as to the third cause of action for Labor Code Section 1102.5 Whistleblower Retaliation.

Conclusion

For the reasons analyzed above, the Demurrer to the FAC is sustained in part and overruled in part. The first cause of action is sustained with leave to amend, the second cause of action is overruled, and the third cause of action is sustained without leave to amend. The amended pleadings shall be filed within 15 days of service of notice of entry of this order.

8. 9:00 AM CASE NUMBER: C26-00404
CASE NAME: RAKEISHA HILL VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF FIRST AMENDED COMPLAINT

Introduction

Defendant City of Richmond bring a Motion to Strike related to four categories of allegations (i) doe defendant and punitive damages allegations; (ii) age-discrimination allegations and additional factual allegations that were not pleaded in Plaintiff's CRD complaints; (iii) pension-loss theory allegations; and (iv) statutory damages under Labor Code section 1102.5.

For the following reasons, the **Motion to Strike is granted for the doe defendants and punitive damages allegations and denied as to all other requests.**

Defendants request that the following portions to be stricken:

1. From the caption, the following words: "and DOES 1 through 20, inclusive," (p. 1, ln. 14.);
2. From the title of the pleading, the following words: "AND DOES 1 THROUGH 20" (p. 1, ln. 14-15);
3. From the introductory paragraph of the FAC, the following words: "and Does 1 through 20 inclusive," (p. 1, ln. 19);
4. Paragraph 4, in its entirety;
5. Paragraph 5, in its entirety (p. 2, ln. 6-10);
6. From paragraph 6, the following words: "and Does 1 through 20 (the latter based on information and belief)" (p. 2, ln. 12-13);
7. Paragraph 20, in its entirety;
8. Paragraph 21, in its entirety;
9. Paragraph 24, in its entirety;
10. Paragraph 25, in its entirety;
11. Paragraph 26, in its entirety;
12. Paragraph 27, in its entirety;
13. Paragraph 38, in its entirety;
14. Paragraph 39, in its entirety;
15. Paragraph 40, in its entirety;
16. Paragraph 41, in its entirety;
17. Paragraph 43, in its entirety;
18. Paragraph 85, in its entirety;
19. From paragraph 89, the following words: "her age, and" (p. 14, ln. 6);

20. From paragraph 90, the following words: “yet younger” (p. 14, ln. 11);
21. From paragraph 91, the following words: “aside from their age and” (p. 14, ln. 15);
22. From paragraph 95, the following word: “younger” (p. 15, ln. 7);
23. From the heading to the First Cause of Action, the following words: “(Alleged Against All Defendants)” (p. 16, ln. 15);
24. From paragraph 108, the following words: “who was forty-three years of age when she entered the Academy and was forty-four years of age when she was wrongfully terminated” (p. 16, ln. 27-28);
25. From paragraph 112, the following words: “were younger and” (p. 17, l. 13);
26. From paragraph 114, the following words: “and age,” (p. 17, l. 20);
27. Paragraph 116, in its entirety;
28. Paragraph 117, in its entirety;
29. From paragraph 118, the following words: “including the forced early withdrawal of retirement funds and associated financial losses” (p. 18, ln. 15-16);
30. From paragraph 119, the following words: “interruption of CalPERS benefits, or” (p. 18, ln. 19);
31. Paragraph 120, in its entirety;
32. From paragraph 121, the following words, to the extent Plaintiff seeks speculative future pension-related damages: “additional pecuniary losses to be proven at trial, consequential damages,” (p. 18, ln. 28; p. 19, ln. 1);
33. From paragraph 121, the following words: “punitive damages pursuant to Civil Code section 3294 and” (p. 19, ln. 1-2);
34. From the heading to the Second Cause of Action, the following words: “(Alleged Against All Defendants)” (p. 19, ln. 7);
35. From paragraph 124, the following words: “and some or all of the Doe Defendants” (p. 19, ln. 13);
36. Paragraph 131, in its entirety;
37. From paragraph 132, the following words: “(inclusive of the yet to be named Doe Defendants)” (p. 20, ln. 27);
38. Paragraph 133, in its entirety;
39. From paragraph 134, the following words: “(including the yet to be named Doe Defendants)” (p. 21, ln. 5);
40. From paragraph 134, the following words, to the extent Plaintiff seeks speculative

future pension-related damages: “additional pecuniary losses to be proven at trial, consequential damages,” (p. 21, ln. 7-8);

41. From paragraph 134, the following words: “punitive damages pursuant to Civil Code section 3294 and” (p. 21, ln. 8-9);

42. From the heading to the Third Cause of Action, the following words: “(Against All Defendants)” (p. 21, ln. 13);

43. From paragraph 144, the following words: “the Doe Defendants, among others,” (p. 22, ln. 17);

44. From paragraph 144, the following words: “and Doe Defendants” (p. 22, ln. 19);

45. From paragraph 144, the following words: “and punitive damages given the Defendant City and Doe Defendants acted oppressively, fraudulently and maliciously as alleged in this Complaint” (p. 22, ln. 19-20);

46. Prayer for Relief, paragraph 6, in its entirety, if the Court sustains the City’s demurrer to the Third Cause of Action for Labor Code section 1102.5 retaliation, without leave to amend;

47. Prayer for Relief, paragraph 7, in its entirety.

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff’s counsel in the Declaration of Charles R. Hellstrom. On May 13, 2026, Defendant emailed a meet and confer letter to Plaintiff. The next day the parties discussed the issues set forth in the meet and confer letter and were unable to come to an agreement. (Hellstrom Decl. at ¶¶3-4.)

Legal Standard

A court’s determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on “extrinsic evidence showing that the allegations are ‘false’ or ‘sham.’ Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable.” (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) “Irrelevant matter,” as the term is used in section

436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure § 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Doe Defendants And Punitive Damages Allegations

Defendant proffers that the parties agreed and Plaintiff filed a request for dismissal of the doe defendants and Plaintiff's claims for punitive damages. (Hellstrom Decl. at ¶ 5.) Plaintiff does not dispute this category of item to be stricken. (Opposition at p. 1 fn. 1.) Motion to Strike doe defendants and punitive damages allegations is granted.

Age Discrimination Allegations And Additional Factual Allegations That Were Not Pleaded In Plaintiff's CRD Complaints

As described in the Demurrer ruling, Defendant's Demurrer as to the first cause of action was sustained with leave to amend, thus mooted this request. Motion to Strike age discrimination allegations and other allegations not pleaded in Plaintiff's CRD Complaints is denied.

Pension Loss Theory Allegations

Defendant argues that the alleged damages asserted in the FAC are not just speculative, but impossible. Defendant points out that the FAC seeks damages based on Plaintiff's early withdrawal from a pension that she claims would have matured within six years. (FAC ¶¶ 85, 116–119, 131.) She alleges she thereby lost "hundreds of thousands of dollars" in future retirement benefits. (Id. at ¶¶ 85, 117, 131.)

Defendant relies on *Miller* for the proposition that an employee has no vested right to remain in public employment for a particular number of years in order to earn a larger future retirement allowance. (Motion at p. 12: 19-23 citing *Miller v. State of California* (1977) 18 Cal.3d 808, 813-818.) Defendant cites *Toscano* for the position that future lost earnings through retirement were too speculative where the theory assumed the plaintiff would have remained employed until retirement. (Reply at p. 7: 7-9 citing *Toscano v. Greene Music* (2004) 124 Cal.App.4th 685, 696-97.) These cases are factually distinguishable because both the *Miller* and *Toscano* plaintiffs were left their respective jobs and did not return while here Plaintiff was fired as a police officer and then allowed to return to her previous job she held as a records specialist and was part of the same CalPERS pension plan.

The Court also notes that *Miller* was a Supreme Court review of a Writ of Mandamus, while *Toscano* was an Appellate Court review of a trial award. The procedural posture in this current motion is a challenge of the pleadings not a decision on the merits. The issue of whether the pension loss theory is viable is a mixed question of law and fact.

An issue of fact cannot be determined on a motion to strike or at the pleading stage in general. (*Litinsky v. Kaplan* (2019) 40 Cal.App.5th 970, 982.) Whether Plaintiff's reliance was reasonable, whether her withdrawal was foreseeable, and the quantum of damages are questions of fact that cannot be resolved on a motion to strike. It would be inappropriate for the Court to strike the pension loss theory allegations at this time

The Court denies the Motion to Strike statutory damages under Labor Code section 1102.5.

Statutory Damages Under Labor Code Section 1102.5

As described in the Demurrer ruling, Defendant's Demurrer as to the third cause of action was sustained without leave to amend, thus mooting this request. Motion to Strike age statutory damages under Labor Code section 1102.5 is denied.

Conclusion

As analyzed above, the **Motion to Strike is granted for the doe defendants and punitive damages allegations and denied as to all other requests. The amended pleadings shall be filed within 15 days of service of notice of entry of this order.**

**9. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: REFLECTIONS MAINTENANCE ASSOCIATION
*TENTATIVE RULING:***

The Court continues the hearing on this motion to August 17, 2026 at 9:00 a.m.

**10. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT
FILED BY: REFLECTIONS MAINTENANCE ASSOCIATION
*TENTATIVE RULING:***

The Court continues the hearing on this motion to August 17, 2026 at 9:00 a.m.

**11. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
HEARING IN RE: MOTION TO CONFIRM TRIAL DATE FILED ON 5/21/26 BY MOLLY DUGGAN, ERIK COCHRAN, AND GABRIELLA DUGGAN-COCHRAN
FILED BY:
*TENTATIVE RULING:***

Plaintiffs' motion consists of two parts: (1) Motion to Confirm Trial Date and (2) Establish Tolling Date under CCP 583.340.

- (1) The trial date of 1/28/27, 10:00am, in Dept. 34 was set by Hon. Leonard E. Marquez at the Case Management/Trial Setting Conference held on 4/28/26 in the ordinary course of the Court's case management.

At the Trial Setting Conference, Plaintiffs appeared without an attorney, and Attorney Kere Tickner appeared representing the Defendant. The trial date was not objected to by Attorney Tickner, and the date was confirmed by "Trial Setting Order/Pretrial Orders (Jury)." Also, the